

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 12 (Hon. Nahal Iravani-Sani)

Hon. Jose S. Franco, Presiding

Courtroom Clerk, Ryan Nguyen

191 North First Street, San Jose, CA 95113

Telephone: (408) 882-2230

DATE: 7/10/2026 TIME: 9:00 A.M. and 9:01 A.M.

LINE 7	25CV464001	Shari Yuan vs Starbucks Corporation	Hearing on Motion to Change Venue Tentative Ruling from April 15, 2026 (modified): The Court has carefully considered Plaintiff’s reliance on CCP § 395.5 in filing the Complaint in Santa Clara County. That statute permits suit against a corporation in the county where the corporation has its principal place of business, where the contract is made or performed, or where the obligation or liability arises. Plaintiff argues that because Defendant is a foreign corporation that has not designated a principal place of business within California, it may be sued in any county in the state. The Court does not interpret § 395.5 so broadly. The absence of a designated California principal place of business does not render venue proper in every county. Rather, the statute still requires a nexus between the action and the county selected—most commonly where the liability arises. Here, the alleged injury occurred in Kern County, and thus liability arose there. Plaintiff’s showing that Defendant operates numerous retail locations in Santa Clara County does not establish that Santa Clara County is Defendant’s principal place of business within the meaning of § 395.5, nor does it otherwise supply a statutory basis for venue in this county. Nor does the relative convenience of corporate witnesses, including access to airports or transportation infrastructure, provide an independent basis to establish venue where it is otherwise improper. The Court is mindful of Plaintiff’s residence in Santa Clara County, her ongoing medical care, and the presence of supportive witnesses here. Those are legitimate and practical concerns. However, in personal injury actions, a plaintiff’s residence does not determine venue under CCP § 395, and the Court is constrained to apply the governing statutory framework. Because Santa Clara County is not a proper venue under CCP §§395 or 395.5, transfer is mandatory. The Court therefore does not reach the parties’ arguments regarding convenience under CCP §397. Defendant’s motion to change venue to Kern County Superior Court is GRANTED.
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			Defendant to prepare the final order, accompanied by the necessary Forms EFS-020, within 10 days of the date of the hearing.
LINE 8	25CV469650	Jane Doe vs Chaochin Lu et al	Hearing on Demurrer (Special and General) to FAC Defendant's Demurrer was filed on February 24, 2026 and a hearing date set on May 22, 2026. Notice was proper. On May 22, 2026, the Plaintiff was not present, and the motion was continued to July 10, 2026. The Court also issued an Order to Show Cause Re: Dismissal and sent notice to the Plaintiff. To date there is no filing by Plaintiff opposing Defendants' Demurrer. Defendants' Demurrer to Plaintiff's Complaint is Unopposed and Sustained with 15 days leave to amend.
LINE 9-10	25CV472277	Vahe Tashjian vs Macias Gini & O'Connell LLP et al	Hearing on Demurrer and Motion to Strike FAC. See Lines 9-10 below for tentative ruling. The Court will prepare and file the formal Order.
9:01 LINE 1	25CV479391	Mark Shaw et al vs Chris Rego et al	Hearing on Application to Appear Pro Hac Vice Counsel Defendant's Application for Vaughn Fisher to appear pro hac vice pursuant to California Rules of Court Rule 9.40. Notice being proper, no opposition having been filed, and good cause appearing, the application is GRANTED. Moving party (Defendant) to submit proposed order.

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